

Court Record) Preeti Verma vs Pankaj Verma on 11 November, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ MAT.APP.(F.C.) 121/2020 & CM 26114/2020 (for summoning trial
court record)
PREETI VERMA Appellant
Through: Mr. Ramakant Sharma, Advocate

versus

PANKAJ VERMA Respondent
Through: Mr. Rajesh Rai, Advocate

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 11.11.2020

HEARD THROUGH VIDEO CONFERENCING

CM 26115/2020 (Exemption)

Allowed, subject to all just exceptions.

MAT.APP.(F.C.) 121/2020

1. The appellant/wife is aggrieved by the judgment dated 07.09.2020, passed by the learned Family Court, Dwarka, New Delhi dismissing a petition filed by her for seeking divorce from her husband under Section 13 (1) (ia) of the Hindu Marriage Act.

2. The undisputed facts of the case are that the marriage of the parties was solemnised on 30.11.2001 and two children were born from out of the wedlock, one on 19.10.2002 and the other on 02.12.2006. Both the children have remained in the care and custody of the appellant/wife. The parties have been separated for about ten years now. HMA No.1095/2017 is the second divorce petition filed by the appellant/wife. Prior thereto, she had filed a divorce petition against the respondent in the year 2011 in Roorkee, Uttarakhand which was withdrawn in the very same year hoping to reunite with the respondent. The parties however could not reunite even thereafter.

3. After interacting with learned counsel for the parties, we have enquired if they are ready and willing to submit themselves to mediation. Both sides state that they had tried their hand at mediation before other fora too as also in the High Court, during the course of an appeal preferred by the respondent against the maintenance order passed by the Family Court, but to no avail. They

however state that the circumstances have changed and they would be willing to negotiate a onetime settlement, if possible.

4. Accordingly, with the consent of the parties and without prejudice to their respective rights and contentions, they are directed to appear before the Mediator, to be appointed by the Delhi High Court Mediation and Conciliation Centre, on 19.11.2020 at 11.00 a.m., for participating in the online mediation. The parties along with their respective counsel shall appear virtually before the Mediator. The learned Mediator shall have discussions with the parties and submit a report before the next date of hearing.

5. List on 15.03.2021, in the category of 'directions' for reporting settlement, if any.

CM 26116/2020 (by the appellant for grant of maintenance)

1. This application has been moved by the appellant for issuing directions to the respondent to continue paying maintenance to the appellant and the children of the parties.

2. If the appellant has any grievance against the respondent for non- compliance of orders passed by the Family Court granting maintenance, it is for her to approach the appropriate forum for relief. The application is dismissed.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J NOVEMBER 11, 2020 hsk/rkb